

Finally, the Court notes that a preliminary mandatory injunction is rarely granted; it is permitted only in extreme cases where the right to such relief is clearly established. (*Shoemaker v. County of Los Angeles* (1995) 37 Cal.App.4th 618, 625.) Defendants have not met their burden to establish their right to relief. The Motion is **denied**.

Evidentiary Objections

Neither party made any evidentiary objections.

10. 9:00 AM CASE NUMBER: C25-02202
CASE NAME: ABIGAIL REED VS. ATRIA MANAGEMENT COMPANY LLC
***MOTION/PETITION TO COMPEL ARBITRATION**
FILED BY: ATRIA MANAGEMENT COMPANY LLC
TENTATIVE RULING:

Defendants filed this motion for an order compelling arbitration of plaintiffs' claims. Because the Court finds that a party to the arbitration agreement is also a party to a pending court action with a third party, arising out of the same transaction or series of related transactions, and there is a possibility of conflicting rulings on a common issue of law or fact, the motion to compel arbitration is **denied** pursuant to Code of Civil Procedure, § 1281.2 (c)-(d).

Background

Plaintiffs, Abigail Reed and Emma Reed, are the adult children and heirs of decedent, Kenneth Reed. They are also the Personal Representatives, and Executors of his estate. Prior to his death, Kenneth was a 76-year old resident of Atria Park of Lafayette, a residential care facility for the elderly, for just under three months. (FAC, ¶¶18-19.) Kenneth suffered from Parkinson's Disease, congestive heart failure, and other conditions causing him to be bed ridden and require significant assistance in daily activities. (FAC, ¶¶20-21.) Kenneth's wife, Susan (for clarity, the parties will be referred to by their first names. No disrespect is intended), signed admission documents on his behalf with respect to Kenneth's admission to the facility, including an arbitration agreement.

According to plaintiffs, Kenneth was admitted despite him being unable to perform all his activities of daily living without assistance, a "prohibited condition," which made him unqualified to stay and receive care at Atria Park. Plaintiffs allege Kenneth then suffered four falls between October 26th and November 18th. He was hospitalized after the November 18th fall and died on January 4, 2025.

Plaintiffs filed this action in August 2025 and, on September 18, 2025, they filed a First Amended Complaint, alleging causes of action for (1) elder abuse, (2) negligence, and (3) wrongful death.

Defendants now move to compel arbitration, arguing the agreement to arbitrate should be enforced because it is valid and enforceable, because it is not unconscionable, and because any enforceability issues must be determined by the arbitrator pursuant to the delegation clause. Defendants argue the FAA governs pursuant to the express terms of the agreement and, therefore, Code of Civil Procedure section 1281.2, subdivision (c) is preempted and the "only option" available is to compel arbitration.

The motion is supported by a declaration of the Community Business Director of Atria Park,

Grace Abueg, who states the company's general business practices with respect to arbitration agreements. Defendants also submit a declaration from their attorney Lindsey M. Romano ("Romano Decl."), who attaches a copy of the arbitration agreement as well as a durable power of attorney for decedent, both apparently signed by his wife and plaintiff, Susan Reed. The declaration also attaches a copy of plaintiffs' complaint.

Plaintiffs oppose the motion. Plaintiffs assert that the agreement is unconscionable. They do not deny that Susan signed an arbitration agreement, but argue instead that she signed in her representative capacity, not her personal capacity. They also point out neither plaintiff in this case signed the agreement, nor did Susan represent them in signing. As a result, plaintiffs contend their claims would not be subject to arbitration. Plaintiffs argue that proceeding to arbitration only to have to re-try the same issues in court could result in conflicting rulings of law and findings of fact, as well as duplication of efforts.

Defendants' reply does not distinguish between the wrongful death cause of action and the other claims. They argue the FAA preempts any discretion by the Court with respect to compelling arbitration versus other options the Court has under the California Code of Civil Procedure.

Standard

"A petition to compel arbitration should be granted if the court determines that an agreement to arbitrate the controversy exists. (Code Civ. Proc., § 1281.2.) The moving parties bear the burden of proving the existence of the arbitration agreement by a preponderance of the evidence. (*Rosenthal v. Great Western Fin. Securities Corp.* (1996) 14 Cal.4th 394, 413; *Alvarez v. Altamed Health Services Corp.* (2021) 60 Cal.App.5th 572, 580.) Once the existence of an arbitration agreement is established, the burden is on the party opposing arbitration to prove its defense. (*Alvarez, supra*, 60 Cal.App.5th at 580.) If a written arbitration agreement exists, it will be enforced unless there are grounds for its revocation. (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 125; Code Civ. Proc. § 1281.)

Analysis

A. Existence of Agreement

Under state and federal state law, there is a public policy in favor of arbitration, but "[e]ven the strong public policy in favor of arbitration does not extend to those who are not parties to an arbitration agreement or who have not authorized anyone to act for them in executing such an agreement." (*Montemayor v. Ford Motor Co.* (2023) 92 Cal.App.5th 958, 967, citations omitted.)

Here, defendants provide no evidence of plaintiffs having viewed or acknowledged any arbitration agreement, let alone the one proffered. While defendants here have presented a document signed by Susan, on behalf of Kenneth, this does not address the claims of Kenneth's adult daughters. The agreement binds the "Parties," a defined term that only includes signatories ("Resident," "Responsible Party," and "Community"). (Romano Decl., Ex. 2, p. 56 of 67, first para.)

Binding case law exists on this point, at least with respect to wrongful death claims. Plaintiffs cite that case law and, while defendants fail to acknowledge it in their reply, the principle remains that "there is no basis to infer that [plaintiffs] waived their personal right to jury trial on the wrongful death claim." (*Fitzhugh v. Granada Healthcare & Rehabilitation Center, LLC* (2007) 150 Cal.App.4th 469, 474.) In fact, Shepardizing the aforementioned authority leads directly to another case involving at least one of the same parties as *this* case. That case notes, "parties can only be compelled to arbitrate when they have agreed to do so" and "[t]he arbitration agreement makes clear that it

applies only to disputes between the *parties* [...]" (*Maxwell v. Atria Management Co., LLC* (2024) 105 Cal.App.5th 230, 245, emphasis in original, internal citations omitted.)

Maxwell further quoted the agreement at issue in that case. The quotations suggest the agreement was substantially similar, if not exactly the agreement at issue here. (*Maxwell, supra*, 105 Cal.App.5th at 245.) Nonetheless, the court found "[t]he children's wrongful death claims are not derivative of [decedent's] causes of action, which are within the purview of the plain language in the arbitration agreement. In California, a wrongful death claim is personal and lies independent of survivor claims. (*Ibid.*)

Defendants have not met their burden to show the existence of an agreement to arbitrate the claims at issue here.

B. Application of the Federal Arbitration Act

Defendants assert the agreement here is governed by the Federal Arbitration Act (FAA) by its express terms and therefore, if any claim is arbitrable, the Court's discretion pursuant to Code of Civil Procedure, section 1281.2, subdivision (d), is limited or nonexistent.

Plaintiffs, for their part, advocate for the Court's exercise of discretion under that section.

When a motion to compel arbitration is filed in California state court, California's procedural provisions in the California Arbitration Act apply unless the arbitration agreement expressly provides that the parties have adopted the FAA procedural rules. (*Gallo v. Wood Ranch USA, Inc.* (2022) 81 Cal.App.5th 621, 644; *Espinoza v. Superior Court* (2022) 83 Cal.App.5th 761, 771, 775-778; *Valencia v. Smyth* (2010) 185 Cal.App.4th 153, 179.) (See also *Cronus Investments, Inc. v. Concierge Services* (2005) 35 Cal.4th 376, 394 ["Our opinion does not preclude parties to an arbitration agreement to expressly designate that any arbitration proceeding should move forward under the FAA's procedural provisions rather than under state procedural law."].)

Here, the paragraph entitled "Governance" states that, "[a]ny claim or dispute asserted against Atria shall be resolved through submission to individual arbitration as governed by the Federal Arbitration Act, 9 U.S.C. Sections 1-16 ("FAA"), to the maximum extent permitted by law, and/or the Rules of Civil Procedure and Rules of Evidence governing the jurisdiction in which the Community is located." (See Romano Decl., Ex. 2, p. 56 of 67, last para., emphasis added.)

The clause is ambiguous at a minimum, explicitly incorporating the CCP, and the Court does not find that the above provisions (that the FAA will apply "to the maximum extent") means complete preemption of all procedural rules. (See *Maxwell, supra*, 105 Cal. App. 5th at 249.)

C. Enforceability

1. Delegation

Defendant asserts that it is the arbitrator who must decide whether the agreement is enforceable.

While challenges to the validity of the underlying contract are generally for the arbitrator to decide, challenges to the validity of the arbitration clause itself are generally resolved by the court in the first instance. (*Jack v. Ring LLC* (2023) 91 Cal.App.5th 1186, 1196-1197, citations omitted.) This is because the usual presumption is that a court, not an arbitrator, decides threshold issues of arbitrability such as whether the arbitration agreement itself is valid and enforceable. (*Id.* at 1197, citations omitted.) Parties may agree to delegate authority to the arbitrator to decide threshold issues, but given the contrary presumption, evidence that the parties intended such a delegation

must be “clear and unmistakable” before a court will enforce a delegation provision. (*Id.* at 1197, citations omitted.) “This is a heightened standard, higher than the evidentiary standard applicable to other matters of interpreting an arbitration agreement.” (*Ibid.*)

In *Maxwell* the First District Court of Appeals noted the trial court had concluded it was proper for the court to decide enforceability. The language in the agreement there “did not clearly and unmistakably delegate the issue to an arbitrator.” Because the appellants did not contest the conclusion there, the case is not authority for or against defendants’ contention that the delegation clause removes the Court’s authority to decide enforceability. The clause here is similar to the one in *Maxwell*, stating an arbitrator “will decide any question about whether a claim or dispute must be arbitrated under this Arbitration Clause to the maximum extent permitted by law.” (See *Maxwell, supra*, 105 Cal.App.5th at 240-241.)

Here, because the Court finds defendants fail to establish an agreement by plaintiffs to be bound, any delegation is not “clear and unmistakable.” (*Wilson-Davis v. SSP America, Inc.* (2021) 62 Cal.App.5th 1080, 1090 [discussing requirements of delegation clause].)

2. Unconscionability

Plaintiffs contend the arbitration agreement is unconscionable and therefore unenforceable. They bear the burden of proving unconscionability. Because the Court does not find an agreement, it is unnecessary to reach plaintiffs’ arguments in this regard.

Conclusion

Maxwell describes the effect of Code of Civil Procedure, section 1281.2 (c)-(d):

In light of our holding that the wrongful death claims are not arbitrable, we will consider whether section 1281.2(c) applies to these proceedings.

[...]

Generally speaking, a trial court will order parties to arbitrate a dispute “if it determines that an agreement to arbitrate the controversy exists.” (§ 1281.2, 1st par.) However, section 1281.2(c), allows a court to stay or refuse to compel arbitration of all or part of an arbitrable controversy when (1) “[a] party to the arbitration agreement is also a party to a pending court action ... with a third party, arising out of the same transaction or series of related transactions,” and (2) “there is a possibility of conflicting rulings on a common issue of law or fact.” As used in the statute, a “third party” is one who is neither bound by nor entitled to enforce the arbitration agreement. (*Thomas v. Westlake* (2012) 204 Cal.App.4th 605, 612 [139 Cal. Rptr. 3d 114].) Thus, section 1281.2(c) “addresses the peculiar situation that arises when a controversy also affects claims by or against other parties not bound by the arbitration agreement.” (*Cronus Investments, Inc. v. Concierge Services* (2005) 35 Cal.4th 376, 393 [25 Cal. Rptr. 3d 540, 107 P.3d 217] (*Cronus*).)

If the conditions set forth in section 1281.2 are satisfied, the statute “identifies four options from which the court may choose”: “(1) ... refuse to enforce the arbitration agreement and ... order intervention or joinder of all parties in a single action or special proceeding; (2) ... order intervention or joinder as to all or only certain issues; (3) ... order arbitration among the parties who have agreed to arbitration and stay the pending court action or special proceeding pending the outcome of the arbitration proceeding; or (4) ... stay arbitration pending the outcome of the court action or special proceeding.” (*Williams, supra*, 24

Cal.App.5th at p. 1054; § 1281.2, subd. (d), 4th par.)

[...]

Since we have concluded that the children's wrongful death claims are not subject to the arbitration agreement, they are clearly third parties for purposes of section 1281.2(c).

(*Maxwell, supra*, 105 Cal.App.5th at 246-247.)

Because defendants here fail to show an arbitration agreement, at least with respect to the wrongful death claims, and because there is thus no delegation clause that would invoke the FAA with respect to those claims, the Court has discretion pursuant to section 1281.2(d) and it declines to enforce the arbitration clause.

Subdivision (c) is concerned with avoiding inconsistent outcomes and duplication of efforts. Here, defendants are parties to an arbitration agreement with Susan in her representative capacity for decedent Kenneth. Accordingly, the agreement might be capable of enforcement with respect to the elder abuse and negligence causes of action, but not with respect to the wrongful death. Defendants do not delve into these nuances, however. Instead the reply ignores the *Maxwell* case and other authority related to wrongful death claims.

The witnesses and evidence that would be presented in any arbitration of the elder abuse cause of action, assuming that arbitration could be compelled with respect to that aspect of the complaint, would very likely overlap with the witnesses and evidence presented at a trial on the wrongful death cause of action. This presents a significant risk of inconsistent findings of fact or conclusions of law.

Based on the *Maxwell* decision, and on the options available to this Court under Code of Civil Procedure, § 1281.2(d), the Court declines to enforce the arbitration agreement.

11. 9:00 AM CASE NUMBER: C25-02454
CASE NAME: SANDRA BELTRAN VS. MILTON HUEZO MARTINEZ
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: HUEZO MARTINEZ, MILTON R.
TENTATIVE RULING:

Defendant Milton Martinez's demurrer to the complaint is **overruled**. Defendant shall file and serve an answer within 10 days after notice of entry of the order.

Plaintiff Sandra Beltran filed this case for (1) quiet title based upon adverse possession and (2) declaratory relief. Plaintiff alleges that she and the Defendant hold title to a property in Richmond as joint tenants. (Comp. ¶13.) The title for the property shows that Plaintiff and Defendant each own 50% in the property as joint tenants pursuant to a grant deed executed on January 10, 2018. (Comp. ¶14.)

For the quiet title claim, Plaintiff is seeking 100% ownership of the property based upon adverse possession. Plaintiff alleges that since February 2018, she has "solely possessed, maintained, and invested substantially" in the property by paying the mortgage and property taxes, as well as capital improvements. (Comp. ¶18.) Plaintiff alleges she "has been in continuous possession during the